

ELIZABETH II



1970 CHAPTER xviii

An Act to confer further powers on the Flintshire County Council in relation to lands and finance; and for other purposes.
[15th May 1970]

WHEREAS—

(1) It is expedient that the powers of the county council of the administrative county of Flint in relation to lands and finance should be enlarged and extended as by this Act provided:

(2) It is expedient that the other provisions contained in this Act should be enacted:

(3) The purposes of this Act cannot be effected without the authority of Parliament:

1933 c. 51. (4) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Short title. 1. This Act may be cited as the Flintshire County Council Act 1970.

Division of Act into Parts. 2. This Act is divided into Parts as follows:—
 Part I.—Preliminary.
 Part II.—Lands.
 Part III.—Finance.
 Part IV.—Miscellaneous.
 Part V.—General.

Interpretation. 3.—(1) In this Act, unless otherwise expressly enacted or unless the subject or context otherwise requires, the following expressions have the meanings hereby respectively assigned to them:—

1937 c. 68. “the Act of 1933” means the Local Government Act 1933;
 1961 c. 62. “the Act of 1937” means the Local Government Superannuation Act 1937;
 “the Act of 1961” means the Trustee Investments Act 1961;
 “the clerk” means the clerk of the Council;
 “the Council” means the county council of the county;
 “the county” means the administrative county of Flintshire;
 “enactment” includes an enactment in this Act or in any general or local Act or order, byelaw, scheme or regulation for the time being in force within the county;
 “the fund” means the superannuation fund maintained by the Council under Part I of the Act of 1937;
 “land” includes land covered by water and any interest in land or any easement or right in, to or over land.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by or by virtue of any subsequent enactment including this Act.

PART I
—cont.

PART II

LANDS

4.—(1) The Council may purchase by agreement land in the county for the purpose of facilitating the provision of premises for occupation by any undertaking carried on or to be carried on there or for otherwise meeting the requirements of such undertaking (including the requirements arising from the needs of persons employed or to be employed therein). Acquisition of land for development.

(2) In this section—

“premises” includes land and buildings;

“undertaking” means any trade or business or any other activity providing employment.

5.—(1) The Council when they are required by any enactment to make compensation to any person interested in any lands may by agreement with such person make such compensation wholly or partly in works, land or money, but in the case of land for the alienation of which the consent of any government department is required only with such consent. Compensation may be in land.

(2) Nothing in this section shall release the Council or any person purchasing or acquiring any land or interest in land from them under this section from any rents, covenants, restrictions, reservations, terms or conditions made payable by or contained in any conveyance, lease or other deed or instrument by which the land or interest has been conveyed or leased to or otherwise acquired by the Council or any persons from or through whom the Council have derived title to it.

6. The Council may enter into and carry into effect an agreement or arrangement with the owner or occupier of any land acquired by the Council under any enactment with respect to his reinstatement elsewhere and any such agreement may provide for the exchange of land, and for that purpose the Council may pay or receive money for equality of exchange. Power to reinstate owners or occupiers of property.

PART II

—cont.

Disposal of
land.

7. In respect of land acquired by the Council under any enactment for the benefit, improvement or development of the county and not since allocated for any statutory purpose section 165 of the Act of 1933 shall have effect with the omission of the words “and which is not required for the purpose for which it was acquired or is being used”.

Loans for
erection, etc.,
of buildings.

8.—(1) The Council may advance money to—

- (a) any person for the purpose of enabling or assisting him to purchase or lease any land in the county; or
- (b) the owner, purchaser or lessee of any land for the purpose of enabling or assisting him to build or carry out works on such land, or to extend or improve any existing building thereon:

Provided that any such advance shall not exceed nine-tenths of the amount which in the opinion of the Council will be the market value of the interest of the borrower in the land after the purpose of the loan has been effected.

1963 c. 29.

(2) For the purposes of this section the provisions of subsections (2), (4) and (5) of section 3 of the Local Authorities (Land) Act 1963, regulating the form and conditions of advances made by a local authority for the erection of buildings on land sold or let by them, shall apply and have effect as if, for references therein to an advance made under the said section 3, there were substituted references to an advance made under subsection (1) of this section and subject to any other necessary modifications.

(3) Any person acting on behalf of the Council and authorised in writing by the clerk shall have power at all reasonable times to enter any land, building or works in respect of which an advance is made under this section for the purpose of ascertaining whether the conditions subject to which the advance is made are being complied with.

(4) The borrower may with the permission of the Council (which shall not be unreasonably withheld) at any time transfer his interest in the land in respect of which the advance was made, but any such transfer shall be made subject to the terms of the mortgage securing the advance.

(5) In this section—

“lessee” includes a person to whom the Council have agreed to grant a lease and “lease” shall be construed accordingly; and

“owner” means the person (other than a mortgagee not in possession) entitled, either with or without the consent of any other person, to dispose of the fee simple of the land.

9.—(1) The provisions of subsections (1) and (3) of section 64 and section 65 of the Housing Act 1957 shall extend and apply to the Council as if—

PART II
—cont.

Application
of certain
provisions of
the Housing
Act 1957.
1957 c. 56.

(a) the Council were a local authority for the purposes of the said Act of 1957;

(b) land acquired by the Council under this Part of this Act had been acquired by the Council under Part III of the said Act of 1957; and

(c) any works executed by the Council upon such land were executed under powers exercisable by the Council by virtue of that Part of the said Act of 1957;

and accordingly the said provisions as so extended and applied shall have effect as if for the words “this Part of this Act” and “this Act” wherever those words occur there were substituted the words “Part II of the Flintshire County Council Act 1970”:

Provided that the said section 65 as so extended and applied shall have effect as if—

(i) in subsection (1) the words “the foregoing provisions of” were omitted;

(ii) in subsection (2) after the word “subsection” there were inserted the words “or to exercise any powers conferred by Part II of the Flintshire County Council Act 1970 which will or may affect any apparatus” and before the words “the undertakers may” there were inserted the words “in any case where the local authority intend to remove or alter any apparatus”; and

(iii) in subsection (4) after the words “by reason of” there were inserted the words “the exercise of any powers conferred by Part II of the Flintshire County Council Act 1970 in respect of any land purchased under the said Part II or”.

(2) On or before the date of publication of notice of the making of the order under the said section 64 as extended and applied by subsection (1) of this section the Council shall serve a copy of the notice on the statutory undertakers in whose area or limits of supply the land to which the order relates is situate and on any other statutory undertakers who appear to the Council to be concerned.

(3) In this section “statutory undertakers” means any company, body or person authorised by any enactment to supply electricity, gas or water and the Post Office.

PART II
—cont.

Compulsory
acquisition
of
easements.

10.—(1) The Council may be authorised by means of an order made by the Council and submitted to and confirmed by the confirming authority to create in favour of the Council in, over or under any land which under any enactment the Council may be authorised to acquire compulsorily any easement or other right in, over or under or in relation to such land which, in the opinion of the confirming authority, is essential to the full enjoyment or use of any land or building owned or occupied, or intended to be acquired or occupied, by the Council for the purposes of any of their undertakings, powers or duties.

(2) The confirming authority shall not confirm any order under this section unless the confirming authority determine that the easement or right can be created without material detriment to the land in, over or under or in relation to which it is proposed to be created or, in the case of a park or garden belonging to a house, without seriously affecting the amenity or convenience of the house.

1946 c. 49.

(3) The Acquisition of Land (Authorisation Procedure) Act 1946 shall apply as if this section were an enactment contained in a public general Act and in force immediately before the commencement of that Act and as if—

(a) the expression “compulsory purchase of land” in the said Act of 1946 included the creation of such easement or right as is mentioned in subsection (1) of this section; and

(b) paragraphs 9 and 10 of Schedule 1 to the said Act of 1946 applied to the creation of such easement or right as is mentioned in the said subsection (1) whether it is created in, over or under any land to which either of those paragraphs relates or in, over or under any other land in which the person entitled to the benefit of the paragraph has an easement or other right which if it were land would be land to which the paragraph relates.

1965 c. 56.

(4) No such easement or right as is mentioned in subsection (1) of this section shall be deemed part of a house, building or manufactory or of a park or garden belonging to a house within section 8 of the Compulsory Purchase Act 1965.

(5) In this section the expression “confirming authority” means the authority having power to authorise the purchase compulsorily of the land for the enjoyment or use of which the easement or other right is required or which would have had such power if such land were not already owned by the Council.

PART III

FINANCE

11.—(1) The Council may borrow—

Power to
borrow.

- (a) such sums as may be necessary for any of the purposes of this Act;
- (b) without the consent of any sanctioning authority, such sums as may be necessary for paying the costs, charges and expenses of this Act;

and, subject to the provisions of this section, Part IX of the Act of 1933 shall have effect as if money borrowed under this section were borrowed under that Part.

(2) The Council shall repay sums borrowed under paragraph (b) of the foregoing subsection within five years from the date of borrowing.

(3) It shall not be lawful to exercise the powers of borrowing conferred by paragraph (a) of subsection (1) of this section except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act 1946. 1946 c. 58.

12.—(1) In addition to the modes of borrowing prescribed by the Act of 1933 or any other enactment the Council may raise money—

Power to
raise money
by bills.

- (a) for any purpose for which the Council are authorised to borrow;
- (b) in anticipation of the receipt of revenues, for any purpose for which the revenues of the Council may properly be applied;

by means of bills (to be called “Flintshire County Council bills”, in this section referred to collectively as “bills” and separately as a “bill”) subject to, and in accordance with, the following provisions:—

- (i) A bill shall be in the form prescribed by regulations made under this section and shall be for the payment of the sum named therein in the manner and at the date therein mentioned, being a date not more than twelve months from the date of the bill:
- (ii) A bill shall entitle the holder thereof to payment at maturity of the sum expressed in the bill to be payable:
- (iii) Bills may be offered for purchase (whether by tender or otherwise) in such manner and on such conditions as the Council may determine:

PART III
—cont.

- (iv) Bills shall be issued under the authority of a resolution passed by the Council, and shall bear the signature of the treasurer of the Council or of some other person authorised by the Council:
 - (v) The Council may make regulations providing for—
 - (A) the preparation, form, mode of issue, payment and cancellation of bills;
 - (B) the issue of new bills in lieu of bills defaced, lost or destroyed;
 - (C) the prevention, by the use of counterfoils or of a special description of paper or otherwise, of fraud in relation to bills; and
 - (D) the giving of a proper discharge on the payment of a bill:
 - (vi) The amount of money received in respect of a bill shall be deemed to be principal money raised by means of the bill and the difference between the amount payable in respect of a bill and the amount received in respect thereof shall be deemed to be interest on the principal money so raised:
 - (vii) The aggregate amount payable on bills current at any one time shall not (except by the amount payable on bills issued shortly before any other bills fall due in order to pay off the last-mentioned bills) exceed—
 - (A) the sum of seven hundred and fifty thousand pounds; or
 - (B) one-fifth of the amount estimated to be produced by the levying of rates in the county during the then current financial year to meet liabilities falling to be discharged by the Council;whichever is the greater:
 - (viii) Subject to the provisions of the last preceding paragraph, the Council may renew a bill at maturity:
 - (ix) The Council may borrow for the purpose of repaying the principal money raised by bills but except as aforesaid any power of the Council to borrow shall be suspended to the extent of the amount which has been raised by the issue of bills.
- (2) In this section—
“ financial year ” means a period of twelve months ending on 31st March;

“ revenues ” has the same meaning as in section 218 of the Act of 1933;

PART III
—cont.

“ signature ” includes a facsimile of a signature by whatever process reproduced.

13. In addition to any other method by which the Council may raise any money which they are authorised to borrow, they may, with the consent of the Treasury and subject to such conditions as the Treasury may impose, raise the money by means of the issue of bearer bonds or other securities to bearer.

Power to
raise money
by bearer
bonds.

14.—(1) Any method by which the Council are empowered by any enactment to raise any money which they are authorised to borrow shall, notwithstanding anything in such enactment, be deemed to include the raising of money by that method outside the United Kingdom or in any foreign currency.

Power to
raise money
abroad.

(2) The powers conferred by the foregoing subsection shall be exercised only with the consent of the Treasury, and subject to such conditions as the Treasury may impose.

(3) The enactments empowering the Council to raise money shall have effect in relation to a transaction authorised by this section for the raising of money in a foreign currency as if for any reference in those enactments to sterling there were substituted a reference to the foreign currency and for any reference therein to a sum expressed in terms of sterling there were substituted a reference to the sum expressed in terms of the foreign currency (adjusted, where necessary, to produce an amount which the Council consider appropriate having regard to all the circumstances of the transaction).

(4) Nothing in this section shall be taken as exempting the Council from the provisions of any order under section 1 of the Borrowing (Control and Guarantees) Act 1946.

1946 c. 58.

15. Nothing in the last two foregoing sections shall be taken as exempting the Council from the provisions of the Exchange Control Act 1947.

Saving for
Exchange
Control Act
1947.

1947 c. 14.

16.—(1) In its application to the investment by the Council under subsection (3) of section 21 of the Act of 1937 of any moneys forming part of, but which are not for the time being moneys required to meet payments out of, the fund, Schedule 1 to the Act of 1961 shall have effect subject to the following modifications:—

Extension of
power to
invest super-
annuation
fund moneys.

(a) in paragraph 1 of Part III thereof for the words “ and not being securities falling within Part II of this Schedule ” there shall be substituted the words “ or in any securities

PART III
—cont.

issued by a company established under the law of any territory outside the United Kingdom, and not being in either case securities falling within Part II of this Schedule ”;

(b) in paragraph 3 of Part IV thereof for sub-paragraph (a) there shall be substituted the following sub-paragraph:—

“ (a) securities or debentures of a company of which the total issued and paid up share capital is less than five hundred thousand pounds, or (as the case may be) an equivalent sum in any foreign currency in which such share capital is issued at the rate of exchange current at the time when the investment is made; ”.

(2) Paragraph 1 and sub-paragraph (a) of paragraph 2 of Part IV of Schedule 1 to the Act of 1961 shall not apply in relation to any investment authorised by virtue of subsection (1) of this section in any securities issued by a company established under the law of any territory outside the United Kingdom.

(3) Notwithstanding anything in the Act of 1961 the Council may invest any moneys referred to in subsection (1) of this section in any manner specified in Part III of Schedule 1 to the Act of 1961, as amended by this section, and may also from time to time vary any such investments:

Provided that no such moneys as aforesaid shall be so invested at any time when the value of all the investments made in the manner specified in Part III of the said Schedule as so amended equals or exceeds three-quarters of the total value of the fund.

(4) For the purposes of the last foregoing subsection the value of any investment shall be deemed to be the value of the investment at the time at which it was made.

Investment
of super-
annuation
fund in
acquisition,
etc., of land.

17.—(1) Subject to the provisions of this section, the powers exercisable by the Council under the Act of 1961 to invest any property belonging to the wider-range part of the fund shall include power to invest such property in such manner as they think fit (and whether alone or in association with any other person) in the acquisition, development or management of land situated in the United Kingdom, but Part IV of Schedule 1 to the Act of 1961 shall not apply to any investment made under this subsection.

(2) So long as the value of the investments of property for the time being made under the powers conferred by the foregoing subsection is equal to or greater than one-quarter of the total value of the wider-range part of the fund, no further investment may be made thereunder.

(3) For the purposes of the last foregoing subsection, the value of any investment of property belonging to the wider-range part of the fund shall be deemed to be the value of the investment at the time at which it was made.

PART III
—cont.

(4) Subsections (2) to (7) of section 6 of the Act of 1961 shall apply in relation to the exercise of the powers of investment conferred by subsection (1) of this section as they apply in relation to the exercise by the Council of the powers conferred by section 1 of the Act of 1961 to invest any property belonging to the wider-range part of the fund in a manner specified in Part III of Schedule 1 to the Act of 1961.

(5) In this section “property” and “the wider-range part” in relation to the fund have the same meanings as they have for the purposes of the Act of 1961.

18. The provisions of the last two foregoing sections shall have effect notwithstanding anything in subsection (3) of section 21 of the Act of 1937.

Section 21 (3)
of Act of 1937
not to limit
foregoing
powers.

19.—(1) The Council may lend to any local authority upon such terms and conditions as may be agreed such money as the Council think fit to lend and as the local authority are authorised to borrow for the purpose for which such money is proposed to be borrowed.

Power to
Council to
lend money
to local
authorities,
etc.

(2) Every sum borrowed by the Council for the purpose of this section shall be repaid within the period to expire not more than one year after that for which the same was lent by them to the local authority.

(3) The Council shall be entitled to charge such rate of interest in respect of any particular loan under this section as may be agreed between the Council and the borrower:

Provided that the Council shall ensure so far as it is reasonably practicable to do so that having regard to all the circumstances existing at the time the loan is made the rate of interest agreed is such that no loss is incurred by the Council in respect of the loan.

(4) All costs, charges and expenses incurred by the Council in respect of any particular loan under this section shall be met by the borrower.

(5) In this section the expression “local authority” means the council of any borough, urban or rural district in the county and any other authority having jurisdiction within the county and being a local authority as defined by section 34 of the Local Loans Act 1875 and includes the Gwynedd Police Authority, the Central 1875 c. 83.

PART III
—cont.

Flintshire Water Board, the West Denbighshire and West Flintshire Water Board, the Dee and Clwyd River Authority and any joint board if all the constituent authorities are such local authorities as aforesaid.

PART IV

MISCELLANEOUS

Modification of mortgages by endorsement under hand.

20. Notwithstanding anything in any enactment or in any rule of law or otherwise to the contrary, where it is agreed between the Council and a person at any time entitled to any mortgage granted by the Council to extend the time for the repayment of the principal moneys secured by such mortgage, or to alter the rate of interest payable by the Council on the principal money so secured and not repaid, or both to extend such time and to alter such rate of interest, effect may be given thereto by an endorsement in writing under the hands of such person (or in the case of a corporate body, by the duly authorised representative of that body) and of the clerk or his duly authorised representative endorsed on the deed by which such mortgage was originally granted, and the provisions of any such endorsement shall be deemed to be incorporated in the said deed and shall, as from the date specified in such endorsement, operate and take effect accordingly.

As to use of computer equipment of Council.

21.—(1) The Council may provide services and facilities for the processing of data by computer or by any other equipment of the Council which the Council may possess for any person and the Council may make such charges as may be agreed for the provision of those services and facilities.

(2) Information obtained by any employee of the Council in the course of the provision of such services or facilities shall not be disclosed by that employee except for the purpose of performing his duties in relation to those services and facilities or in such cases as may be required by law.

Microfilming of documents.

22.—(1) The Council may make and retain microfilm recordings of documents of the Council.

(2) Notwithstanding anything contained in any enactment, the Council may destroy any documents of the Council other than minute books, of which they have made and retained microfilm recordings:

Provided that—

(a) the Council shall not under this section destroy records deposited with them under the Public Records Act 1958 or acquired or accepted by them under section 2 of the Local Government (Records) Act 1962;

1958 c. 51.

1962 c. 56.

(b) the Council shall afford to the public equal rights of access to a microfilm recording made under this section as would have been available, if this section had not been enacted, in respect of the document so recorded.

PART IV
—cont.

(3) An enlargement of a microfilm recording of a document made in pursuance of this section shall be deemed for all purposes to be a copy of that document.

(4) Notwithstanding anything contained in any enactment or any rule of law an enlargement of a microfilm recording of a document which has been destroyed in pursuance of this section shall be receivable in evidence for any purpose for which the document would have been receivable in any proceedings in any court in England or Wales if the clerk certifies that—

(a) the document has been destroyed; and

(b) a microfilm recording of the document has been made; and

(c) the enlargement is an enlargement of that microfilm recording.

(5) In this section unless the context otherwise requires—

“document” means the whole or part of a register, book, map, plan or other document and includes a notice, licence, certificate, scheme or order made, passed or granted by the Council or any committee of the Council, and references to documents of the Council are references to documents belonging to or permanently in the possession of the Council;

“microfilm recording” means a reproduction of a document on film which is a product of photography or any process akin to photography and is in general beyond legibility with the naked eye.

PART V

GENERAL

23.—(1) Any Minister of the Crown may cause such local inquiries to be held as he may consider necessary for the purpose of any of his functions under this Act. Local inquiries.

(2) Subsections (2) to (5) of section 290 of the Act of 1933 shall apply in relation to any such inquiry; and for that purpose the definition of “department” in subsection (8) of that section shall include any Minister of the Crown having functions under this Act.

(3) In this section “Minister of the Crown” has the same meaning as in the Ministers of the Crown (Transfer of Functions) Act 1946.

1946 c. 31.

PART V
—*cont.*

Protection of
members and
officers of
Council
from personal
liability.
1875 c. 55.

Application
of general
provisions of
Public Health
Act 1936.
1936 c. 49.

Costs of Act.

24. Section 265 of the Public Health Act 1875 shall apply to the Council as if any reference in that section to the said Act of 1875 included a reference to this Act and as if any reference in that section to a member of a local authority included a reference to a member of a committee or a sub-committee of a local authority.

25. Sections 283, 286 and 328 of the Public Health Act 1936 shall have effect as if references therein to that Act included a reference to this Act.

26. The costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act shall be paid by the Council.

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CHAPTER xviii

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PART V

GENERAL

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